

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: May 7, 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	16PR178756	<i>Estate of Frank Sanchez</i>	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2			
LINE 3			
LINE 4			

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Calendar line 1

Case Name: *Estate of Frank Sanchez*

Case No.: 16PR178756

INTRODUCTION

Prior to his death, Frank Sanchez (“Decedent”) and his surviving spouse, Caroline Sanchez (“Caroline”),¹ owned real property located at 2794 Eulalie Drive in San Jose, California (the “Eulalie Property”) as joint tenants with a right of survivorship. In 2015, Decedent signed a quitclaim deed severing the joint tenancy, resulting in Decedent and Caroline owning the property as tenants in common. In 2017, after Decedent’s death, Caroline filed a civil complaint in docket 17CV308535 for cancellation of the quitclaim deed. The court ultimately denied the request to cancel the quitclaim deed. In 2019, Caroline quitclaimed her interest in the Eulalie Property to herself as trustee of the Caroline Sanchez Trust (“Trust”).

In 2016, Leslie Ann Peralta (“Petitioner”), Decedent’s daughter, filed a petition for probate of will and for letters of administration for his estate. On January 30, 2026, after nearly a decade of litigation and administration of the estate, Petitioner filed her fifth amended petition for final distribution of Decedent’s estate (“Petition”). James Larios (“Objector”), Caroline’s son and co-trustee of the Caroline Sanchez Trust,² objected to the Petition, asserting that it is seeking to remove assets from the Caroline Sanchez Trust under the guise of a petition for final distribution in Decedent’s estate case. Objector contends that approximately \$800,000 currently held in a blocked account after the sale of the Eulalie Property belongs to Decedent’s estate and the Trust in equal shares but the Petition proposes that only \$111,764.58 be distributed to the Trust as a result of various disputed claims Petitioner makes against the Trust and includes in the final distribution. In short, it is Objector’s contention that Decedent’s estate owns one-half of the amount in the blocked account, or approximately \$400,000, while the other half belongs to the Trust and is not subject to distribution through this probate proceeding.

Currently before the court is Objector’s motion for judgment on the pleadings filed April 1, 2026, targeting the Petition.³ Petitioner filed an opposition on April 27, 2026 and Objector filed a reply on April 29, 2026.

DISCUSSION

I. Objector’s Request for Judicial Notice

Objector requests judicial notice of (1) the statement of decision and judgment filed June 18, 2018 in docket 17CV308535, (2) the quitclaim deed recorded March 20, 2019 as document no. 24138831 transferring Caroline’s interest in the Eulalia Property to the Trust,

¹ Because some of the individuals involved in this case share the same last name, the court will refer to them by their first names. No disrespect is intended.

² Caroline passed away in 2023.

³ On April 1, 2026, Objector also filed a petition under Probate Code section 850 for an order confirming the Trust’s one half ownership of the proceeds in the blocked account.